



File No: EXP202303466

RESOLUTION OF RIGHTS PROCEDURE

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right to Erasure against GABINETE PERICIAL E INVESTIGACIÓN IURISPERITUS, S.L (hereinafter, the respondent).

The claimant states that they requested the erasure of their personal data from the respondent entity on September 30, 2022, and that the entity confirmed the erasure of their data via email dated October 3, 2022; however, subsequently, they received a call from the respondent entity on February 3, 2023. Along with the complaint, a screenshot of the request sent and the response received regarding the exercised right to erasure is provided, as well as documentary evidence of the receipt of the call, showing the calling line ***PHONE.1, which is the same as that indicated in the email communicating the erasure of their data.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on May 3, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within fifteen working days they could present any arguments they deemed appropriate.

The respondent, in summary, states that they have no evidence that the call in question was made from their entity. They recount the professional relationship maintained with the claimant, concluding that some client they attended to could be the cause of that call.

The respondent defends their way of acting and their protocols to preserve the privacy of the individuals who collaborate with them.

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2/6

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant so that, within fifteen working days, they may present any arguments they consider appropriate.

The arguments of the claimant can be summarized in one sentence: they request that GPI and JUDEX do not communicate with them again, either by telephone or by email.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not

contradict them, subsidiarily by the general rules on administrative procedures."

II

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of Data is competent to perform the functions assigned to it in Article 57, among them, to enforce the Regulation and promote awareness among data controllers and processors regarding their obligations, as well as to handle complaints submitted by a data subject and investigate the reasons for them. Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the claimant with the appropriate response in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

The result of this transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on May 3, 2023, for the purposes provided for in Article 64.2 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to proceed with the matter.

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3/6

The Data Protection Authority agreed to admit the complaint for processing. This admission agreement determines the initiation of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated by Article 64.1 of the LOPDGDD, according to which:

"1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the complainant.

III

The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond

to requests made no later than one month, unless it can demonstrate that it is unable to identify the interested party, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

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4/6

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase such personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes in accordance with Article 89(1), in so far as...

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5/6

the right indicated in paragraph 1 could make it impossible or severely hinder the achievement of the objectives of such processing, or

- e) for the formulation, exercise, or defense of claims."

V

The claimant requested the right to erasure and, in principle, it seems that the respondent addressed it in a timely manner. However, the phone call to the claimant by the respondent afterwards led the

claimant to reconsider whether the right to erasure had been properly addressed and to file the complaint now being examined with this Agency.

After reviewing the documentation in the procedure at this Agency, it is considered appropriate to uphold the complaint so that the respondent can prove that it has erased the claimant's data or, if applicable, inform the claimant of the reasons why erasure is not appropriate.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by A.A.A. considering that what is provided in Article 17 of the GDPR has been infringed and to urge GABINETE PERICIAL E INVESTIGACIÓN IURISPERITUS, S.L with NIF B88263835, to take the necessary measures to erase the claimant's data within ten working days following the notification of this resolution, and to send a certification stating such, or to duly deny the request indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to GABINETE PERICIAL E INVESTIGACIÓN IURISPERITUS, S.L.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and in paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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